



CHAPTER xxxii.

An Act for incorporating and conferring powers on the A.D. 1905.
South Oxfordshire Water and Gas Company.
[30th June 1905.]

WHEREAS by the Goring and Streatley District Gas and Water Order 1888 (herein-after called "the Order of 1888") confirmed by the Gas and Water Orders Confirmation Act 1888 the Goring and Streatley District Gas and Water Company (in this Act called "the limited company") were authorised to supply and sell gas and water within the parishes of Goring in the county of Oxford and Streatley in the county of Berks and to purchase by agreement or take on lease and use the lands in the said parishes of Goring and Streatley described in the schedules to the Order of 1888 for the purposes of their undertaking and to erect and maintain on such lands the gasworks and waterworks and works for the manufacture of residual gas products therein described:

And whereas by the Order of 1888 the authorised share capital of the limited company for the purposes of their gas undertaking was eight thousand pounds and for the purposes of their water undertaking eight thousand pounds:

And whereas by the Goring and Streatley District Gas and Water Order 1902 (herein-after called "the Order of 1902") confirmed by the Gas and Water Orders Confirmation (No. 1) Act 1902 the limited company were authorised to raise further capital not exceeding ten thousand pounds for the purposes of their gas undertaking and eight thousand pounds for the purposes of their water undertaking:

A.D. 1905.

And whereas by the Goring and Streatley District Water Order 1903 (herein-after called "the Order of 1903") confirmed by the Water Orders Confirmation Act 1903 the name of the limited company was changed to the Thames Valley and Goring Water and Gas Company (Limited) and the limits of water supply as defined by the Order of 1888 were extended so as to include the parishes of Kidmore South Stoke Checkendon Ipsden North Stoke Mongewell Newnham Murren Crowmarsh Gifford and Benson in the county of Oxford except any outlying and disconnected portions of any of such parishes respectively and the limited company were also authorised for the purposes of their water undertaking to purchase by agreement and use the lands described in the schedule to the Order of 1903 to make and maintain additional waterworks and to raise additional capital not exceeding thirty-eight thousand pounds including any premiums obtained on the sale thereof:

And whereas in respect of the gas undertaking the whole of the capital of eight thousand pounds authorised by the Order of 1888 has been issued in five-pound shares bearing a maximum dividend of ten per centum per annum and of the ten thousand pounds additional capital authorised by the Order of 1902 one hundred pounds has been issued in five-pound shares bearing a maximum dividend of seven per centum per annum and the whole of such issued capital is fully paid up:

And whereas in respect of the water undertaking the whole of the share capital of eight thousand pounds authorised by the Order of 1888 has been issued in five-pound shares bearing a maximum dividend of ten per centum per annum and is fully paid up and of the additional capital of forty-six thousand pounds authorised by the Orders of 1902 and 1903 upwards of thirty-two thousand five hundred pounds has been issued in five-pound ordinary shares bearing a seven per centum per annum maximum dividend and in preference shares bearing a five per centum per annum dividend and the capital so issued under the Orders of 1902 and 1903 is for the most part fully paid up:

And whereas the borrowing powers of the limited company in respect of their gas undertaking are restricted to one-fourth of the gas capital actually raised and in respect of their water undertaking to one-third of the water capital actually raised including any premium raised on the sale thereof:

And whereas the limited company have borrowed in respect of their gas undertaking two thousand pounds and in respect of their water undertaking two thousand five hundred and fifty pounds: A.D. 1905.

And whereas the amount derived from such issues respectively and from borrowing has been applied to purposes of the limited company to which capital is properly applicable:

And whereas the waterworks authorised by the Orders of 1888 and 1903 will yield a supply of water not only sufficient for the requirements of the existing limits of water supply but also for the requirements of the additional area defined by this Act:

And whereas it is expedient that the limited company should be dissolved and the members thereof reincorporated and that the undertaking of the limited company should be vested in the Company so to be incorporated (in this Act called "the Company") and that the Orders of 1888 1902 and 1903 (except such of the provisions thereof as are by this Act continued) should be repealed:

And whereas it is expedient that the existing limits for the supply of water should be further extended as provided for by this Act and also that the Company should be authorised to maintain and continue the gas undertaking of the limited company within the existing limits of supply:

And whereas it is expedient that the Company be authorised to raise additional capital for the purposes of this Act and for the general purposes of their undertaking and that such other powers should be conferred upon the Company and such other provisions made with respect to their water undertaking as are in this Act mentioned:

And whereas the aforesaid objects cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parlia-

.AD. 1905. ment assembled and by the authority of the same as follows
— (that is to say):—

Short title. **1.** This Act may be cited as the South Oxfordshire Water and Gas Act 1905.

Incorporation of Acts. **2.** The following Acts and parts of Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) the Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the former of those Acts “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner”) the Gasworks Clauses Act 1847 (except sections 31 to 34) and the Gasworks Clauses Act 1871 provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” And the said Gasworks Clauses Acts as so incorporated with this Act shall apply to the existing gas undertaking of the limited company by this Act vested in the Company incorporated by this Act as if the same had been authorised by this Act.

Interpretation. **3.** In this Act unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have in this Act the same respective meanings (viz.):—

The expression “the Company” shall mean the Company incorporated by this Act;

“The gas undertaking” and “the water undertaking” A.D. 1905.
respectively mean and include the gas and water undertakings respectively under the Orders of 1888 1902 and 1903 and the gas and water undertakings under this Act and the gasworks and waterworks and the works connected therewith respectively by this Act vested in and those authorised to be maintained by the Company and any improvements extensions or enlargements thereof respectively which they may construct under the powers of this Act and the lands buildings estate right title property powers privileges and effects of the Company and every part thereof respectively ;

The word “share” shall for the purposes of this Act be construed and read as if the word “half-share” were included therein.

4. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the gas and water undertakings respectively and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes herein-after mentioned and shall be incorporated by the name of “The South Oxfordshire Water and Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands gas and water works and other property for the purposes of this Act. Incorporation of Company.

5. The Company shall be established for the purpose of supplying water and gas to and within the limits of water and gas supply respectively and for other the purposes of this Act. General purposes of Company.

6. The limits of this Act for the supply of water (hereinafter called “the limits of water supply”) shall be the parish of Streatley in the county of Berks and the parishes of Goring Kidmore South Stoke Checkendon Ipsden North Stoke Mongewell Newnham Murren Crowmarsh Gifford Benson Dorchester Drayton St. Leonard Warborough Newington Berrick Salome Brightwell Baldwin Cuxham Britwell Salome Watlington Shirburn Swyncombe Pishill Nuffield Nettlebed Bix Stonor Ewelme Limits of Act.

A.D. 1905. — Badgemore Eye and Dunsden Mapledurham Whitchurch and Britwel Prior in the county of Oxford so much of the parish of Pyrton in the same county as lies south of an imaginary line drawn from the north corner of the parish of Cuxham aforesaid in a north-easterly direction to the north-west corner of the parish of Shirburn aforesaid so much of the parishes of Rotherfield Greys Rotherfield Peppard Harpsden and Shiplake in the same county as is not included in the limits of supply of the Henley-on-Thames Water Company Limited except any outlying portions of any of such parishes which are not contiguous to the limits of supply as above defined but including any outlying portions of such parishes which are so contiguous.

The limits of this Act for the supply of gas (herein-after called "the limits of gas supply") shall be the parish of Streatley in the county of Berks and the parish of Goring in the county of Oxford.

Present property of limited company vested in Company incorporated by this Act.

7. Subject to the provisions of this Act all the water and gas undertakings waterworks and gasworks lands buildings property stock plant interest rights powers privileges easements and agreements which immediately before the passing of this Act were vested in the limited company or any person or persons in trust for them or to which the limited company were in anywise entitled and all water and gas mains pipes plant apparatus stock and effects whatsoever which may have been by them purchased provided or laid down in any road or place or house within the limits of this Act or which immediately before the passing of this Act were the property of the limited company and all moneys securities for money credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustees on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as they were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may subject to and in accordance with the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

8. Subject to the provisions of this Act and excepting the sections of the Orders of 1888 and 1903 respectively referred to in the First Schedule to this Act which shall continue and have effect so far as the same are applicable so much of the Confirmation Acts respectively as confirms the Orders of 1888 1902 and 1903 is hereby repealed and such Orders are hereby annulled and the memorandum and articles of association (if any) of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of the said Provisional Orders or any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of such Orders or of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall thenceforth continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

A.D. 1905.
Repeal of
Provisional
Orders and
memorandum
and articles
of association
of limited
company to
be void.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the Orders of 1888 1902 and 1903 had not been annulled and the Acts confirming them respectively had not been so in part repealed and the memorandum and articles of association had not been avoided by this Act and such incorporation annulling repeal and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said Orders were not annulled and the Acts confirming them were not so in part repealed and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and

Nothing to
affect exist-
ing rights
and liabili-
ties.

A.D. 1905. purposes as from the passing of this Act represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Contracts
prior to pass-
ing of Act to
be binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of that company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall as from the passing of this Act and subject to and in accordance with the provisions of this Act be as binding and of as full force and effect in every respect against or in favour of the Company and may as from the passing of this Act and subject as aforesaid be enforced as fully and effectually as if instead of the limited company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action suit or other proceeding at law or in equity which was pending by or against the limited company or any member thereof in relation to the affairs of that company or to which that company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may thereafter be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted as from the passing of this Act for the limited company and the members thereof respectively.

Indemnity.

12. Every person who (being authorised so to do) before the passing of this Act entered into any bond covenant contract or engagement on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he

may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. A.D. 1905.

13. From and after the passing of this Act but subject to and in accordance with the provisions of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Company to satisfy liabilities of limited company.

14. All water rates and gas rates and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall subject to and in accordance with the provisions of this Act be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

Recovery of water and gas rates &c.

15. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for the passing of this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by and be recoverable from the Company.

As to payment of debts owing before passing of Act.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions before the passing of this Act made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if such memorandum and articles had not been avoided.

Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution repeal and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts of law and equity and elsewhere notwithstanding such dissolution repeal and avoidance.

Books &c. continued as evidence.

A.D. 1905.

Officers to
continue un-
til removed.

18. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company or their period of service shall in accordance with notice duly and lawfully given in that behalf by the limited company before the passing of this Act or otherwise be determined and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
register of
members to
be continued.

19. The books kept by the limited company for entering the names addresses and designations of the members thereof with the numbers of their shares shall and may continue to be kept by the Company for the same purpose in relation to the shares by this Act vested in the shareholders in the limited company and shall until some other register of holders of those shares shall be provided by the Company be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

Water capi-
tal.

20. The capital of the Company for the purposes of their water undertaking shall be one hundred and seventy-five thousand pounds being the aggregate of the following sums :—

- (1) Eight thousand pounds bearing a ten per centum maximum dividend being the nominal amount of capital authorised by the Order of 1888 :
- (2) Eight thousand pounds bearing a seven per centum maximum dividend authorised by the Order of 1902 :
- (3) Thirty-eight thousand pounds authorised by the Order of 1903 :

All of which capital is herein-after collectively referred to as “the original water capital” and shall (except as herein-after provided with respect to half-shares) be divided into ordinary and preference shares of ten pounds each :

- (4) One hundred and twenty-one thousand pounds (in this Act called “the additional water capital”) which shall be raised in manner herein-after mentioned.

21. The capital of the Company for the purposes of their gas undertaking shall be eighteen thousand pounds being the aggregate of the following sums:—

A.D. 1905.
 Gas capital.

(1) Eight thousand pounds bearing a ten per centum maximum dividend being the nominal amount of capital authorised and issued under the Order of 1888 :

(2) One hundred pounds bearing a seven per centum maximum dividend being the nominal amount of capital issued under the Order of 1902 :

All of which capital has been fully paid up and is herein-after referred to as “the original gas capital” and shall (except as herein-after provided with respect to half-shares) be divided into ordinary shares of ten pounds each :

(3) Nine thousand nine hundred pounds (in this Act called “the additional gas capital”) which shall be raised in manner herein-after mentioned.

22.—(1) Provided always that where at the time of the passing of this Act a single old share in the water or gas undertakings respectively is held separately or an odd old share would remain after appropriating to any registered member of the limited company a ten-pound share for every two old shares held by such member there shall be created such a number of ordinary shares to be called “half-shares” of five pounds each as shall be necessary in order to appropriate in respect of every such single or odd old share one such half-share as aforesaid.

Creation of
 half-shares
 for certain
 purposes.

(2) Every two such half-shares shall be deemed to represent and be in lieu of one ordinary or preference share of ten pounds of the same denomination.

23. Such half-shares shall be numbered in arithmetical progression beginning with number one and every such half-share shall be distinguished by its appropriate number and after the consolidation as herein-after mentioned of any half-shares into shares of ten pounds each the last-mentioned shares shall be numbered in arithmetical progression next after the then existing shares of ten pounds each and shall thenceforth be distinguished by their appropriate numbers.

Half-shares
 to be num-
 bered.

24.—(1) (A) The shares in the original water capital shall be vested in the several persons who immediately before the

Vesting of
 shares in pre-
 sent share-
 holders.

A.D. 1905. — passing of this Act were the registered members of the limited company in substitution for old shares in the water undertaking held by them respectively one share of ten pounds being substituted for two shares of five pounds of the same class and one half-share being substituted for a single or odd old share of the same class :

(B) The shares in the original gas capital shall be vested in the several persons who immediately before the passing of this Act were the registered members of the limited company in substitution for old shares in the gas undertaking one share of ten pounds being substituted for two shares of five pounds and one half-share being substituted for a single or odd old share.

(2) If at any time two of such half-shares shall become vested in the same person such two half-shares shall immediately thereupon become ipso facto consolidated into one share of ten pounds and shall thereafter be dealt with accordingly.

(3) Every share or half-share so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as at the passing of this Act affected the share or half-share for which the same is substituted and every deed or agreement or other instrument or any testamentary disposition shall take effect with reference to the whole or a proportionate number of the substituted shares or half-shares as the case may be.

Company to
call in and
cancel exist-
ing share cer-
tificates and
issue new
certificates in
lieu thereof.

25. The Company shall call in and cancel the existing certificates of shares in the limited company and issue in lieu thereof certificates in the form and under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof but if any holder of any existing share or shares of the Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of six months after notice in writing sent by post to the address appearing in the "Shareholders' Address Book" the Company may retain any dividend declared or made payable upon or in respect of the shares so held by him until such existing certificate or certificates is or

are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed. A.D. 1905.

26. The Company may from time to time raise all or any part of the said sums of one hundred and twenty-one thousand pounds additional water capital and nine thousand nine hundred pounds additional gas capital by the creation and issue of new ordinary shares or stock or preference shares or stock or wholly or partly by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided always that not more than one-half of the water capital and one-half of the gas capital of the Company shall consist of preference shares or stock. Provided also that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional water capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty-one thousand pounds or of additional gas capital the sum of nine thousand nine hundred pounds.

Power to
raise addi-
tional water
and gas
capital.

27. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act or any shares or stock of the original water capital which may have been unissued at the passing of this Act are or is to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction.

New shares
or stock to
be offered by
auction or
tender.

A.D. 1905. or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bidding or offer by tender of any holder of shares or stock be the same in amount as any bidding or offer made by any other person the bidding or offer of such holder of shares or stock shall be accepted in preference.

Purchase money to be paid within one month.

28. It shall be one of the conditions of any sale of shares or stock under this Act that the whole nominal amount thereof together with any premium given by any purchaser at such sale shall be paid to the Company within one calendar month after such sale.

Notice to be given as to sale &c. of shares or stock.

29. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk to the council of every district wholly or partly within the limits of water supply or gas supply as the case may be and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of water supply or gas supply as the case may be.

Shares or stock not sold by auction or by tender to be offered to holders of ordinary shares.

30. When any shares or stock created under the powers of this Act or any shares or stock of the original water capital which may have been unissued at the passing of this Act have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary or preference shares or stock in the Company and holders of debentures or debenture stock and to the water and gas consumers in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act and the reserved price put upon such shares or

stock may upon such second or any subsequent auction or tender if the directors of the Company think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of ordinary and preference shares or stock debentures or debenture stock and water and gas consumers aforesaid at the last-mentioned reserved price and so on until the whole of such shares or stock is sold. A.D. 1905.

31. Any sum of money which shall arise by way of premium from the issue of any such shares or stock after deducting therefrom (if the Company think fit) the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the waterworks or gasworks of the Company or in paying off money borrowed or owing on mortgage by the Company in respect of the water or gas undertaking as the case may be and shall not be considered as part of the capital of the Company entitled to dividend. Provided that the premiums received from the sale of shares or stock by auction or tender as herein-before provided shall for the purposes of this Act be reckoned as part of the paid-up capital of the Company.

Application
of premium
arising on
issue of
shares or
stock.

32. The Company shall not in any year declare or make out of their profits any larger dividends in respect of the original water capital than ten pounds on such portion thereof as was issued under the Order of 1888 and on the remainder thereof and the additional water capital by this Act authorised than seven pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital and such dividends are in this Act referred to as "the prescribed dividends."

Limits of
dividend on
water capital.

33. If in any year (or half-year in case the Company pay a dividend half-yearly) the net revenues of the water undertaking applicable to dividend are insufficient to pay the full amount of the prescribed dividends on the ordinary capital for the time being raised for the purposes of the water undertaking such revenues shall be applied in the first place in paying a dividend on all the ordinary water capital of the Company actually paid up not exceeding seven pounds per centum per

Dividends on
water capital
to be paid
pari passu.

A.D. 1905. — annum and the balance (if any) shall be applied to the payment of the unpaid amount of the prescribed dividend on the original ordinary capital raised under the Order of 1888.

Profits of gas undertaking of Company limited.
 Standard rate of dividend.

34. Except as by this Act provided the profits of the Company to be divided among the holders of shares or stock in their gas capital in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") that is to say On so much of the original gas capital as was raised under the Order of 1888 the rate of ten pounds in respect of every one hundred pounds of such capital and on the remainder of the original and on the additional gas capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

If profits exceed amount limited excess may be invested and form an insurance fund.

35. If the clear profits of the gas undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and the dividend on the ordinary capital at the authorised rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up gas capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up gas capital of the Company which fund shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company in relation to the gas undertaking from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up gas capital the interest thereon shall be carried to the credit of the fund available for dividend Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or

charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid. A.D. 1905.

36. If the clear profits of the gas undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year. Application of excess of profits over authorised rates of dividend.

37. Where in any year the dividend on the ordinary gas capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company for their gas undertaking existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the gas reserve fund" and shall be applicable to the payment of dividend in respect of the gas undertaking in any year in which the clear profits thereof are insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary capital of the gas undertaking of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund. Power to create a reserve fund out of dividends in excess of standard rates of dividend and application thereof.

38. The Company may subject to the provisions of this Act borrow on mortgage of the water and gas undertakings respectively any sum or sums not exceeding in the whole one-third part of the amount of the capital of those undertakings raised or by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have Power to borrow.

A.D. 1905. — proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

For appointment of a receiver.

39. The mortgagees of the water and gas undertakings respectively may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver of the gas or water undertaking in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage of such undertaking.

Debenture stock.

40. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on all debenture stock and on all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock over other debts &c.

41. All moneys to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company which is entitled to rank in priority

to or pari passu with the interest or dividends on such mortgages or debenture stock. A.D. 1905.

42. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable including the costs of obtaining this Act. Application of moneys.

43. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and subsequent meetings half-yearly in the months of February and August. First ordinary meeting.

44. The prescribed quorum for a meeting of the Company shall be ten holders of stock or shares present in person or by proxy holding in the aggregate not less than one-twentieth of the subscribed capital of the Company. Quorum of meeting.

45. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than six or less than three. Number of directors.

46. The qualification of a director shall be the possession in his own right of shares of not less nominal value in the aggregate than two hundred and fifty pounds half in the water and half in the gas undertaking. Qualification of directors.

47. The quorum of a meeting of directors shall be three. Quorum of directors.

48. Henry Jeremiah Robus Frederick Edwin Bodkin and James Elyard J.P. with two other persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being (if they continue qualified) eligible for re-election. First directors and election of directors.

At the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the

A.D. 1905. provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

Contracts not to disqualify for office of director.

49. Any contract to be made under this Act with any corporation or public body shall not disqualify any of the members of such corporation or public body for the office of director of the Company and no director or shareholder of the Company shall be disqualified for the office of director of the Company by reason of any contract between him and the Company for any loan of money to the Company but no director of the Company being a member of any such corporation or public body shall vote upon any question with reference to any contract with such corporation or public body.

Powers as to maintenance and renewal of water-works.

50. Subject to the provisions of this Act the Company may maintain improve and renew or discontinue the existing water-works of the limited company upon the lands on which the same are erected or any part thereof and they may also upon the same lands from time to time improve and renew or discontinue all necessary and convenient approaches embankments roads ways tunnels adits tanks reservoirs filtering beds weirs dams sluices gauges culverts wells cuts shafts pumping and distributing mains pipes engines meters machinery and other works and apparatus and conveniences in connexion with or in addition to their existing waterworks or for any purposes of their water undertaking for obtaining filtering storing and supplying water.

Supply by gravitation.

51. The Company shall not be required to supply water in any case at a pressure greater than that to be afforded by gravitation from the service reservoir at the summit of Greenmoor Hill :

Provided that the Company shall within five years from the passing of this Act supply water subject to the provisions of section 35 of the Waterworks Clauses Act 1847 to every part of their district situate above the level of the Greenmoor Hill Reservoir.

Rates for domestic purposes.

52. The Company shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of

water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say):— A.D. 1905.

Where the rateable value of the premises so supplied with water does not exceed five pounds the sum of eight shillings and eightpence;

Where such rateable value exceeds five pounds and does not exceed ten pounds at a rate per centum not exceeding eight pounds;

Where such rateable value exceeds ten pounds and does not exceed twenty pounds at a rate per centum not exceeding seven pounds ten shillings;

Where such rateable value exceeds twenty pounds and does not exceed forty pounds at a rate per centum not exceeding seven pounds;

Where such rateable value exceeds forty pounds and does not exceed sixty pounds at a rate per centum not exceeding six pounds ten shillings;

Where such rateable value exceeds sixty pounds at a rate per centum not exceeding six pounds;

and so in proportion for any shorter period in each case:

Provided that in the case of an inn or hotel (public or private) so supplied with water the rateable value of which exceeds fifteen pounds the Company shall be entitled to demand and take in respect of such supply at a rate not exceeding the rate of seven pounds ten shillings per centum per annum upon such rateable value and so in proportion for every shorter period:

Provided also that the Company shall not be compellable to furnish any such supply as aforesaid for any less sum than eight shillings and eightpence in any one year nor for a less period than twelve months and that the Company shall not be entitled in any case to demand a higher water rate for any house or part of a house included in any division of the above scale of rates than they would be entitled to demand if such house or part of a house were of just sufficient rateable value to bring it within the next higher division of the said scale.

A.D. 1905.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor :

Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

Rates for
waterclosets
&c.

53. The Company may charge for or in respect of every watercloset beyond the first in any premises within the limits of water supply an additional sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Rates pay-
able by
owners of
small houses.

54. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Company not
bound to sup-
ply several
houses by
one pipe.

55. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of dis-
continuance.

56. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Supply of
water for
agricultural

57. The Company shall on being required so to do by owners or occupiers of lands within the district of the Company supply

water for agricultural or trade purposes by meter on reasonable terms and conditions at a price not exceeding two shillings and sixpence per thousand gallons and the moneys payable to the Company for the supply of water under this section shall be recoverable in the same manner as water rates : A.D. 1905.
or trade pur-
poses.

Provided always that no owner or occupier shall be entitled to a supply of water for agricultural or trade purposes if such supply would interfere with the sufficiency of the supply for domestic purposes or unless the annual amount payable for such supply by such owners and occupiers shall in the aggregate be not less than one-tenth part of the expense of providing and laying down the pipes necessary for such supply :

Provided also that no such requisition for supply shall be binding on the Company unless such owners and occupiers shall severally execute an agreement binding themselves to pay for a supply of not less than five hundred gallons of water per week for a period of three successive years at least.

Any question as to the reasonableness and terms and conditions of the charge for water supplied by the Company for agricultural or trade purposes under the provisions of this section shall be determined by an arbitrator to be appointed by the Local Government Board on the application of either party.

On the completion of a period of ten years from the passing of this Act the maximum price of two shillings and sixpence per thousand gallons shall be subject and liable to revision by the Local Government Board.

58. The Company shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Supply to
houses partly
used for
trade &c.

59. The Company shall when required supply the road authorities within the meaning of section 2 of the Gas and Water Works Facilities Act 1870 and every sewer authority within the limits of supply with water for watering roads and streets and for flushing sewers and drains or other public purposes at a rate not exceeding two shillings and sixpence for every thousand gallons and for such purposes the Company shall provide and fix meters and connect the same with their mains Company to
supply water
to road and
sewer autho-
rities.

A.D. 1905. at the cost of the authority requiring the same but no such
— authority shall be entitled to such a supply whenever and so
long as the Company are of opinion that the same would inter-
fere with the proper supply of water for domestic purposes.

Rates for
supply above
certain level.

60. Notwithstanding anything contained in this Act the
Company shall be entitled to charge in respect of all water
supplied by them at a greater height than twenty feet below
the sill of their existing reservoir at Cleve the following rates
and the sections of this Act of which the marginal notes respec-
tively are "Rates for domestic purposes" and "Rates for
waterclosets &c." shall be read and construed as though such
rates were included therein (that is to say) :—

For domestic purposes where the rateable value of the
premises so supplied with water does not exceed five
pounds the sum of ten shillings per annum ;

Where the rateable value exceeds five pounds but does not
exceed ten pounds at a rate per centum per annum not
exceeding ten pounds ;

Where such rateable value exceeds ten pounds and does
not exceed twenty pounds at a rate per centum per annum
not exceeding nine pounds ten shillings ;

Where such rateable value exceeds twenty pounds and does
not exceed forty pounds at a rate per centum per annum
not exceeding nine pounds ;

Where such rateable value exceeds forty pounds and does
not exceed sixty pounds at a rate per centum per annum
not exceeding eight pounds ten shillings ;

Where such rateable value exceeds sixty pounds and does
not exceed one hundred pounds at a rate per centum
per annum not exceeding eight pounds ;

Where such rateable value exceeds one hundred pounds
at a rate per centum per annum not exceeding seven
pounds ten shillings ;

and so in proportion for any shorter period in each case :

Provided that in the case of an inn or hotel (public or
private) where the rateable value exceeds ten pounds at a
rate not exceeding fifteen pounds per centum per annum upon
such rateable value and so on in proportion for any shorter
period Provided always that the Company shall not be required

to furnish any such supply as aforesaid for any less sum than twenty shillings in any one year nor for a less period than twelve months:—

A.D. 1905.
—

For and in respect of every watercloset beyond the first an additional sum not exceeding six shillings and six-pence per annum and for every bath an additional sum not exceeding twenty shillings per annum;

For baths containing as usually filled for use a greater quantity of water than fifty gallons but not exceeding seventy gallons an additional sum of two pounds. But the Company shall not be compelled to supply water for any bath so constructed as to contain when filled for use more than fifty gallons of water. Such rateable value shall be ascertained and such additional sums shall be payable and recoverable in like manner as in the said sections mentioned.

61. For preventing waste misuse undue consumption or contamination of the water of the Company the following provisions shall have effect (that is to say):—

Byelaws for
preventing
waste &c. of
water.

- (1) The Company may make byelaws for the purpose of preventing the waste undue consumption or misuse or contamination of water and by such byelaws may prescribe the size nature materials workmanship and strength and the mode of arrangement connexion dis-connexion alteration and repair of the pipes meters cocks ferrules valves soil-pans waterclosets baths tanks cisterns and other apparatus fittings means contrivances receptacles or appliances whatsoever to be used and may forbid the use of the several things before-mentioned or any or either of them and any arrangements which may lead to waste or undue consumption misuse erroneous measurement or contamination:
- (2) Such byelaws shall not be of any force or effect except within such part or parts of the district which the Company for the time being are bound to supply and do in fact supply or are prepared on demand to afford a constant supply:
- (3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the

A.D. 1905.

Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Company were a local authority within the meaning of those sections and the secretary of the Company were the clerk of the local authority :

- (4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company. All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy :
- (5) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours notice in writing enter and by or under the direction of their duly authorised officer repair replace or alter any pipe meter valve cock ferrule tank cistern bath soil-pan watercloset or other apparatus means contrivance or receptacle fittings or appliances belonging to or used by such person and the expense of every such repair replacement or alteration shall be repaid to the Company and may be recovered by them as part of the water rate from the person to whom the water is supplied.

Power to
supply water
in bulk.

62. The Company may enter into and carry into effect agreements with any local authority company or persons for the supply of water within or beyond the limits of this Act to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given beyond the limits of this Act except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply

of water for domestic purposes within the limits of this Act. A.D. 1905.
Provided also that the Company shall not supply water in bulk —
or otherwise outside or for distribution consumption or use
outside the counties of Berks and Oxford.

63. The Company may contract with any local authority Company
company or persons beyond the Company's limits of gas supply may contract
(but only with the consent in writing of the local authority of with local
the district in which the supply is to be given and of any company authorities
or person supplying gas under parliamentary powers within &c. for sup-
that district) for the supply to them respectively of gas in bulk ply of gas in
upon such terms and conditions and for such periods not bulk.
exceeding in any case seven years from the making of the contract
as shall be agreed upon.

64. The Company may sell water meters and any fittings Power to sell
connected therewith upon and subject to such terms (pecuniary water meters.
or otherwise) and conditions as they think fit and the provisions
of section 14 of the Waterworks Clauses Act 1863 shall extend
to authorise the Company to let for hire any water fittings to
any person supplied by them with water.

65. The Company shall at all times at their own expense Company to
keep all meters or other instruments for measuring water let by keep meters
them for hire in proper order for correctly registering the supply &c. in repair.
of water and in default of their so doing such person shall not be
liable to pay rent for the same during such time as such default
continues.

66. Where water is supplied by measure the register of the Register of
meter or other instrument for measuring water shall be primâ meters &c. to
facie evidence of the quantity of water consumed. Provided be evidence.
that if the Company and the person to whom the water is
supplied differ as to the quantity consumed such difference
shall be determined upon the application of either party by a
court of summary jurisdiction who may also order by which of
the parties any costs of the proceedings before them shall be
paid and the decision of such court shall be final and binding
on all parties.

67. Before any person connects or disconnects any meter by Notice to
means of which any of the water of the Company is intended Company of
to be or has been registered he shall give not less than twenty- connecting
four hours notice in writing to the Company of his intention and discon-
necting
meters.

A.D. 1905. to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to supply materials.

68. The Company may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Company in providing such materials and executing such work shall be paid by the person requiring the same.

Power to lay pipes in streets and roads not dedicated to public use.

69. The Company may on the application of the owner or occupier of any premises within the area of supply abutting on or being erected in any street or road laid out but not dedicated to public use supply such premises with water or gas or both and may lay down take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Power to local authority &c. to supply water in case Company fails to supply.

70. If at any time after the expiration of five years from the passing of this Act (or three years in respect of so much of the district of the Company as was within the water limits of the limited company prior to the passing of this Act) the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the limits of supply as aforesaid the local authority of such district may provide a supply in the whole or any part of their district within such limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company as if in either case this Act had not been passed.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district

such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade. A.D. 1905.

71. The Company shall keep separate annual accounts with respect to their water undertaking showing the amount of their paid-up capital in relation to such undertaking and such accounts shall in all respects be in accordance with the provisions of the Waterworks Clauses Act 1847. Separate accounts to be kept in respect of water undertaking.

72. Subject to the provisions of this Act the Company may upon the lands described in the Second Schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas. Powers as to construction and maintenance of gas-works &c.

73.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture meters engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed. Power to supply gas-fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

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Charge for
gas supplied
by means of
prepayment
meters.

74.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers within the limits of this Act through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet including cooker :

The said charge shall include the providing letting fixing repairing and maintenance of the meter fittings and cooker and the cost of collection and other costs incurred by the Company in connexion with the meter fittings and cooker.

(3) The maximum charge for the hire of a prepayment meter without fittings and cooker shall be at the rate of sixpence per one thousand cubic feet of gas supplied through such meter.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Power to
take licences
for patents.

75. The Company may subject to the provisions of this Act (but only for the purposes of the gas undertaking within the limits of gas supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture or distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from materials used therein.

Quality of
gas.

76. The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by fourteen sperm

candles and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871. A.D. 1905.

77. The standard price to be charged by the Company for gas supplied by them shall be five shillings per thousand cubic feet provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows :—

Dividend
dependent
on price
charged.

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

78. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case ten per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case fifteen per centum Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Discounts.

A.D. 1905.

Pressure of
gas.

79.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

Testing-
place and
burner.

80. The Company shall maintain the existing testing-place with the apparatus therein according to the provisions of the Gasworks Clauses Act 1871 and the burner to be used for testing gas shall be a Sugg's London Argand No. 1 with a six-inch by one and three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used. Provided that on the application of the Company any other burner may be approved for the purpose by the Board of Trade and such burner for the time being approved by the said Board in pursuance of this section shall be the prescribed burner in lieu of the said Sugg's London Argand burner No. 1.

Anti-fluctua-
tors for gas
engines.

81. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so doing or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

82. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

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No penalty
in case of
unavoidable
cause.

83. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Company to
pay interest
on deposit.

84. The Company shall keep separate annual accounts in respect of their gas undertaking authorised by this Act showing the amount of their paid-up capital in relation to such undertaking and such accounts shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Separate ac-
counts to be
kept in re-
spect of gas
undertaking.

85. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

As to con-
struction and
placing of
pipes &c. be-
tween mains
and meters.

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :

(3) The specification shall be published twice in some news-
paper or once in each of two newspapers circulating

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within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :

- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

For protec-
tion of Great
Western
Railway
Company.

86. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall apply :—

- (A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this

Act upon across under or adjoining or in any way A.D. 1905.
affecting the railways lands and property now or
hereafter belonging to or used or occupied by the
Great Western Company or the bridges approaches
viaducts stations or other works or any level crossings
over the railways of the Great Western Company the
same shall be done under the superintendence and to
the reasonable satisfaction of the principal engineer
of the Great Western Company and only according to
such plans and in such manner as shall be submitted
to and as shall be previously reasonably approved by
him in writing :

- (B) All such works shall be done by and at the expense
of the Company except as in this section otherwise
provided who shall also restore and make good to
the reasonable satisfaction of the said engineer the
roads over or under any bridge or over any level
crossing of the railway of the Great Western Com-
pany or over the approaches to any such bridge or
level crossing so far as the same may be disturbed
or interfered with by or owing to any operations
of the Company Provided always that should the
Great Western Company elect so to do where any
mains or pipes require to be laid under or across
any level crossing of their railway they may them-
selves lay the same at the costs charges and expenses
of the Company :
- (c) All such works and operations and all matters incidental
thereto shall be constructed executed and done so as
to cause as little injury as may be to such railways
bridges level crossings approaches viaducts stations
works lands or property and so as to cause no
interruption to the passage or conduct of traffic
over such railways or at to or from any station
thereon :
- (d) If any injury or interruption as aforesaid shall arise
from or in any way be owing to any of the acts
works operations and matters aforesaid or the leak-
age or failure of any such mains pipes or works in
under or near to any railway bridge level crossing
embankment cutting approach viaduct station land

A.D. 1905.

works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided :

(E) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company fourteen days notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works :

(F) Any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

As to pipes
crossing
works of a
railway or
other com-
pany.

87. If any difference arise between the Company and any railway canal or other company whose lands or works the Company have power to cross under the authority of this Act as to the mode of laying down repairing altering or enlarging their conduits mains pipes or other works or as to the facilities to be afforded for the same such difference shall be settled by

an engineer or other fit person to be appointed by the Board of Trade at the request of either party. A.D. 1905.

88. Twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Gas consumers to give notice to Company before removing.

89. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse supply to persons in debt for other premises.

90. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Notice to discontinue supply of gas.

91. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Period of error in defective meters.

92. The Company may for the general purposes of their gas and water undertakings take purchase and hold by agreement (but not otherwise) in addition to the lands now belonging to them any lands within the limits of supply for gas and water as defined by this Act not exceeding in the whole ten acres in extent or any easement (not being an easement of water) in

Purchase of land by agreement.

A.D. 1905. — over or under any such lands which they may require for the purposes of their works and undertakings Provided that they shall not create or permit a nuisance on any such lands or use any such lands for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

Persons
under dis-
ability may
grant ease-
ments &c.

93. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges as far as the same are applicable in this behalf shall extend and apply to such grants or to such easements rights or privileges as aforesaid.

Company
may lease
spare lands
of under-
taking and
may reserve
water rights
on sale.

94. The Company may from time to time demise and lease for any terms not exceeding twenty-one years in possession and also either before or after making any demise and lease thereof absolutely sell and dispose of to such persons and in such manner as the Company think fit any lands houses and property for the time being belonging to the Company which they do not require for the purposes of their undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands) and on the lease or sale by the Company of any such lands houses and property they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the lease or sale subject to such reservations accordingly and may also make any such lease or sale subject to such other reservations special conditions restrictions and provisions as they think fit.

Penalties for
injuring
pipes meters
&c.

95. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without

prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable and the existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or user as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

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—

96. Any summons or warrant issued for any of the purposes of this Act may contain in the body thereof or in the schedule thereto several sums.

Several sums
in one sum-
mons.

97. No justice or judge of any county court or quarter sessions shall be disqualified from acting in the execution of this Act by reason of his being liable to the payment of any water rate or gas rate or other charge under this Act.

Liability to
water or gas
rate not to
disqualify
justices from
acting.

98. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties.

A.D. 1905.

Copy of Act
to be regis-
tered.

99. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty and every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Costs of Act.

100. All the costs charges and expenses of and incidental to the application for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company and charged on the water and gas capital hereby authorised in such proportion as the directors may decide.

SCHEDULES referred to in the foregoing Act.

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THE FIRST SCHEDULE.

The Order of 1888 :—

Section 33 Power to construct waterworks and to supply water.

Section 58 For the protection of the Great Western Railway Company.

Section 59 For the protection of the Conservators of the River Thames.

The Order of 1902 :—

Section 15 Additional water capital.

The Order of 1903 :—

Section 10 Construction of works.

Section 13 Extending provisions for protection of Great Western Railway Company.

Section 15 For protection of Conservators of River Thames.

Section 19 Additional capital.

THE SECOND SCHEDULE.

LANDS on which the **COMPANY** may erect and maintain **WORKS** and manufacture **GAS** and **RESIDUAL PRODUCTS** and store **GAS**.

A piece or parcel of land situate in the parish of Goring in the county of Oxford containing by admeasurement one acre and ten perches or thereabouts and being part of a field or piece of land numbered 16 on the 25-inch Ordnance map of the said parish of Goring (such field formerly belonging or reputed to belong to Charles Lawrence Weare Gardiner) and bounded on the south by a new road on the east and south-east by the Icknield Way and on the north and west by the remainder of the said field numbered 16 on the said Ordnance map.

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